

THE COURT: Sheriff East, you've already given the oath, so you're still under that oath. Deputies, if y'all would raise your hand. Do you swear or affirm testimony that you're about to give is the truth, the whole truth, and nothing but the truth, so help you God?

DEPUTIES: Yes, sir.

THE COURT: I do it, Sean. Yes.

CASE REGARDING INCIDENT AT SHERIFF S DEPARTMENT PARKING LOT (December 28, 2020)

PROSECUTOR: I'm going to call Deputy Dixon. That's the rule being voted. I see you.

THE COURT: You may.

DEPUTY COURTNEY DIXON - DIRECT EXAMINATION

PROSECUTOR: Courtney Dixon of the Lafayette County Sheriff's Department. Is that correct, sir?

DEPUTY DIXON: Yes, sir.

PROSECUTOR: I direct your attention to the 28th day of December 2020 and your encounter of Matthew Reardon on that day. First of all, is Matthew Reardon the person that you encountered that day here with us in the courtroom?

DEPUTY DIXON: Yes, sir.

PROSECUTOR: What was your purpose? Tell us about that encounter. What was going on? Where were you? And what was happening?

DEPUTY DIXON: I went inside the break room.

PROSECUTOR: Tell me where you are when you say break room.

DEPUTY DIXON: We're all inside the Sheriff's Department. And I walked out of that hall.

PROSECUTOR: I know this is going to sound a little bit silly, but this is the Lafayette County Sheriff's Department inside of Lafayette County. Go for it. You were in the break room inside the department.

DEPUTY DIXON: When I looked outside in our designated parking areas, I seen a black Kia Soul. It's a 2013 Kia Soul, black in color. It was parked in the Sheriff's Department's designated areas where deputies park at.

PROSECUTOR: So when you say it's labeled off, like if you look out of the break room, you can see the parking lot, through glass windows, and it's right there at the front. When you say, how would an individual know not to park in those spots?

DEPUTY DIXON: We have signs that say, "Reserved for Sheriff's Department." We have signs right there on the side.

PROSECUTOR: Of course working Sheriff's Department y'all are there somebody's probably there 24-7 or have access for that and they need to get in there in a hurry if they need to correct?

DEPUTY DIXON: Correct.

PROSECUTOR: So you see a vehicle in that spot. Describe how the vehicle is parked.

DEPUTY DIXON: The Black Kia Soul was backed into the area, into that parking, that is in that area, and it was taking up two parking spots. It was parked over the line. So I walked outside and another deputy sheriff's, it was a Durango, pulled up. It was Ethan Tipple. He was walking up towards me as I was walking down a little walkway where we've got gang access to. When Ethan Tipple passed the Black Kia Soul, Matt Reardon, I said, "Matt, you cannot park there."

PROSECUTOR: Well, when you went out there, did you know there was anybody in the vehicle?

DEPUTY DIXON: At the time, no.

PROSECUTOR: You went out there because you saw a vehicle in the area. Was somebody actually in there?

DEPUTY DIXON: Yes.

PROSECUTOR: So, Mr. Reardon, do you have identified or he exited out of the vehicle?

DEPUTY DIXON: He exited out of the vehicle. I said, "Matt, you cannot park there." He says, "I will not move until I speak to the sheriff." I said, "Matt, you cannot park there." He said, once again. I said, "I'm going to tell you one last time. Move the vehicle. This is a reserved area for the sheriff's department." He said, "I will not move, I need to speak to the sheriff, Joey East." I said, "Put your hands behind your back. You're going to be under arrest for disorderly conduct." He began to run away, chanting that he needs to speak to the sheriff or things of that nature and he was screaming, screaming it loudly as I gave chase behind him. Deputy Ethan Tipple gave chase also. He's running sideways so it wasn't like a long chase but it was short and I restrained him, took him down, and as we was trying to place him in cuffs he was in like a fetal position down on his knees and so he couldn't tell who got on his legs to hold his legs because he was squirming. While I tried to get his hands from under him, from under his chest because he was tight. He had his arms like he was very tense. So as I was reaching under him, I scraped over my knuckles. I had scratches on my knuckles trying to get from under him from the pavement. We finally got him in cuffs. I

had to remove his cell phone and things up in his hand. I don't know if he had two or he may have had two cell phones. I had to remove them from his hands before placing them in cuffs. I kind of threw them to the side. He was cursing and saying all kinds of things while we got him in cuffs and everything. Walked him inside the jail. He began to kick the doors and everything. Continued to curse. And his attitude was so bad that we had to put him in a restraining chair.

PROSECUTOR: All this for parking in the reserved area for the sheriff's department?

DEPUTY DIXON: For two reserved areas for the Sheriff's Department?

PROSECUTOR: Yes. One and a portion of the... What else happened? Was that that?

DEPUTY DIXON: Well, basically just cursing and banging inside the jail. I know that he did what I told him, my chairman just told him. A few photos to keep long of that. That I think I can resort back to him in the morning and see what all happened. But as far as I know, I know that he did, let's see, when we made it inside the jail, he did, he was cursing and screaming. At one point, he pulled away from me. It was something, he was doing some kind of movement and causing me to fall over on top of the chair inside the jail. We had to pick him up. They said, "You hit me." And I was like, "No, I didn't hit you." And I placed him inside the chair. And that's when we started moving.

PROSECUTOR: And that was inside?

DEPUTY DIXON: That was inside.

PROSECUTOR: My approach, to you, you know, you might want to hand me that thing.

DEPUTY DIXON: Yes, sir. I'm sorry. I didn't mean to hit you.

PROSECUTOR: Tell me what you charged Mr. Reardon with. Or what did you just charge?

DEPUTY DIXON: I charged Matt Reardon with disorderly conduct and resisting arrest.

PROSECUTOR: And the disorderly conduct. You just described. Why charge him with the disorderly conduct?

DEPUTY DIXON: Basically, I gave him several commands out in the parking lot to move his vehicle. He would not do so. He gives somebody a lot of opportunities. That's the reason that you charged him with disorderly conduct?

DEPUTY DIXON: Yes.

PROSECUTOR: All right. So we get beyond that. And then you charged him with something else. What's that?

DEPUTY DIXON: Resisting arrest. Basically, he ran away from us. When he got down in the fetal position, he wouldn't give us his hands for the cuffs, and everything else of that nature. So as you start resisting, and you're running away from us, not following commands, he falls on both of those.

PROSECUTOR: So the disorderly, if he peacefully moved his car, we wouldn't be here for a reason. Is that what your testimony is?

DEPUTY DIXON: Yes, sir. The disorderly, it was for not moving his car from the reserved area. He had several commands, and he didn't follow any of them at all. And then there was resistance.

PROSECUTOR: At what point did he say something earlier about getting handcuffed or told him to turn around? What would it be?

DEPUTY DIXON: When I told him to turn around and place his hands behind his back, that's when he began to run away sideways. And I gave chase to him.

PROSECUTOR: And that's when he became resistant?

DEPUTY DIXON: Yes.

PROSECUTOR: In your mind?

DEPUTY DIXON: Yes.

PROSECUTOR: And, of course, you've got cameras on the outside of the jail. Was that one of the intentions?

DEPUTY DIXON: Yes, we did.

PROSECUTOR: And you guys preserved that footage, correct?

DEPUTY DIXON: Yes.

PROSECUTOR: You might have to help him. We've got your video here and it's been here a long time. I can't make your video work. The tool made didn't work. I don't know if that's true or not, but that's what I answered. That's why it did bad. Where's the boy? Where's the boy? That's where you lost him last time.

(Technical difficulties with the video playback)

PROSECUTOR: All right, Deputy Dixon, watch this and tell us the first time you see the car that you talk about, and then I'm going to tell you to be quiet for a while.

DEPUTY DIXON: When he first gets there, the car that you encountered, I know it's the movie. I was in the break room area. I mean, it is a big department.

PROSECUTOR: That's not the parking spot you're looking at. Is it, sir?

DEPUTY DIXON: No, that's the other one. Actually, that was wide open for anybody and everybody.

PROSECUTOR: Yes. Okay. All the folks could park right there. Okay. That's Sheriff East's Tahoe right there. He's parking in his designated area. All the areas where the sheriff is parked at right now. Those are designated areas.

DEPUTY DIXON: Okay. All right.

PROSECUTOR: Did you ever see the shooter?

DEPUTY DIXON: I saw that video where he over here. Is that you, officer?

DEPUTY DIXON: I don't think I walked inside the camera yet, but I'm speaking. Okay. That's Matt. He's standing inside the video. I'll just sit there. That's you right there. That's you.

PROSECUTOR: Okay. Okay. I'm trying to get a clear shot, but I took a screen grab of the video right there. Reserved for Sheriff's Department. So we're off camera at that point. I'm going to ask you a few questions. What's that on his window?

DEPUTY DIXON: No.

PROSECUTOR: Of that vehicle that he got out of. Some kind of tarp, a blue tarp is covering this window.

DEPUTY DIXON: I guess this window was disabled. But that means you can't see in there.

PROSECUTOR: You cannot.

PROSECUTOR: So when Deputy Tipple came up, he just sees a car there parked. Um, what happens out there? What's going on?

DEPUTY DIXON: What's going on? Nothing has relation to Mr. Reardon or his person. Y'all deal with his car at this point that we're on?

DEPUTY DIXON: Yes, they're taking, I think, it would be typical to take photos of his car being parked in a designated area. Later on, we walk out, when Deputy Tolling arrives, we take photos inside of the vehicle to kind of log things that he was carrying. So, Mr. Reardon doesn't think that we actually took anything. It was cluttered. It had a lot of clutter, and it was several items like cartons and stuff like that. It was just this. He kind of took photos of everything and we took out his backpack and took photos of items that was inside the bag. He kind of knew a lot. But he's not there. He's in the back part of the jail, the detention part of the jail. He doesn't come back out in the camera?

DEPUTY DIXON: No.

PROSECUTOR: If you guys want to watch it, I'm going to write a video on the Jack had let the clerk log that in and put it on a certain disk and they didn't want somebody else to read it.

DEFENSE COUNSEL: No objection.

PROSECUTOR: I think it was Mark and Steve. They did it. Number one, he wanted to get rid of the disk. You were talking in the video still up there, you said you had to come back and instruct us how to do that. Are you still dealing with Mr. Reardon at this time?

DEPUTY DIXON: Inside the jail.

PROSECUTOR: Inside the jail, okay. And that's when you, as you described before, if you kick some door somewhere, there's an entrance door inside the jail. We have a couple of doors where there is a lobby. We walk in in the middle. We wait until...

DEPUTY DIXON: That door closes the first door and then we walk through the other to gain access inside the jail. Where we have to go through two other doors to gain access to the booking area.

PROSECUTOR: So if I'm understanding you correctly, you walk in the front door and that's the lobby to the Sheriff's Department. That's not the jail per se. You've got to go through again. You have to have a key or have something.

DEPUTY DIXON: To the back part of the jail.

PROSECUTOR: So that's the door he kicked? Or was it...

DEPUTY DIXON: He kicked, I want to say, after we walked through one door, the next door he kicked. I want to say he possibly kicked two doors. I could be wrong on that. Because this incident was in December. So...

PROSECUTOR: Anything else that I've left out that you described, what you called his failure to obey your command to move his car that was in the reserve spot? You talked about his resistive behavior. Anything else that you tell the court about that factored into your decision to charge him?

DEPUTY DIXON: No, just those things.

DEPUTY DIXON - CROSS EXAMINATION

DEFENSE COUNSEL: Good morning, Deputy Dixon. You and I know each other. During term, we sit practically next to each other weeks at a time. I'm going to be formal, or try to be formal with you, and please don't take that personally. Alright?

DEPUTY DIXON: Alright.

DEFENSE COUNSEL: How am, during term, you'll walk up to me to talk about somebody there to see me, or I'll walk up to you and tell them, has this person been served? How is a person supposed to know when a law enforcement officer is walking to them, whether they're just walking to talk or they are walking to initiate an arrest?

DEPUTY DIXON: Basically, if we give them an order, if I walk up on them, upon someone and I tell them to do, I give them a command and they don't follow it and then I tell them two other times to do that, to do so and they don't do it at that point, they're disqualified.

DEFENSE COUNSEL: Those are the commands about, you asked Mr. Reardon to move the vehicle.

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: And he wouldn't move the vehicle. I understand that. Now, how is somebody supposed to know after that's happened that you've made the decision to arrest and as you approach them that you are initiating that arrest? What do you tell them if anything?

DEPUTY DIXON: You might just grab them, I don't know, or what do you say to them to notify them that they are now being put under arrest?

DEPUTY DIXON: Place your hands behind your back.

DEFENSE COUNSEL: And did you say that to Mr. Reardon?

DEPUTY DIXON: To my knowledge I believe so.

DEFENSE COUNSEL: You said you believe so. Is there a possibility that you didn't say it?

DEPUTY DIXON: If we have some audio recording of me saying so, then...

DEFENSE COUNSEL: Then you said it, right? Have you seen the audio recording that Mr. Reardon posted online of this incident?

DEPUTY DIXON: I don't keep up with his videos because...

DEFENSE COUNSEL: He did post some. He did post some.

DEPUTY DIXON: I just go off what someone has told me about the videos. I don't follow him on social media. I try to stay away from him because he has a whole lot of things that he talks about.

DEFENSE COUNSEL: I completely understand that. As far as... This particular one that you're on, and it might have you speaking on it, have you ever watched or listened to an audio of this together?

DEPUTY DIXON: Very little.

DEFENSE COUNSEL: In that audio, do you say, did you hear yourself say, "Put your hands behind your back"?

DEPUTY DIXON: Not that I remember.

DEFENSE COUNSEL: Did you say you were under arrest before you approached him in that mode to put him under custody?

DEPUTY DIXON: I would have to hear about it later.

DEFENSE COUNSEL: Okay. You were telling him to move, right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Move, move now. He needs to move. And he moved, didn't he? You weren't telling him to stand still. Did you ever say stand still?

DEPUTY DIXON: No.

DEFENSE COUNSEL: Did you ever say lay down?

DEPUTY DIXON: No.

DEFENSE COUNSEL: Did he tell you that he was recording before the incident?

DEPUTY DIXON: He did not .

DEFENSE COUNSEL: Did you ever tell him to drop whatever was in his hand?

DEPUTY DIXON: No .

DEFENSE COUNSEL: All right, do the signs there at that parking spot, it's my recollection, did I go to the jail on vacation? Maybe it should be off the reserve for Sheriff's Department. Let me look at a photo inside of my notes.

DEPUTY DIXON: Absolutely.

DEFENSE COUNSEL: I can see a blank photo where it says reserve for Sheriff's Department. It says DEPT. I'm going to be aided, so...

DEPUTY DIXON: Right. Reserved for Sheriff's DEPT period.

DEFENSE COUNSEL: All right. Now, the jail is also at that facility. Is that right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: All right. So, and then there's the sheriff's department, right?

DEPUTY DIXON: Well, it's all of it. We may say the Sheriff's Department, we may say the Lafayette County Detention Center.

DEFENSE COUNSEL: But if somebody could be coming to the jail to visit somebody in jail or to bond somebody out of jail and see that sign and say, okay, that's not for me. But somebody might be there to see the Sheriff's Department and say, yep, I'm here for the Sheriff's Department. This is a good place for me to park.

DEPUTY DIXON: All right.

DEFENSE COUNSEL: Now at this time, there were empty parking spots here and there in this parking lot, even with Mr. Reardon in this reserved for Sheriff's Department's spot and poorly parked there, right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: And with that tarp that he couldn't see through, that could be an explanation of why he was poorly parked too. Can't see his rear view mirror, see what lines he's on. He couldn't see through that, right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Now, did you come out specifically to speak to Matt?

DEPUTY DIXON: I did.

DEFENSE COUNSEL: Were y'all watching the video someplace in there? Watching the parking lot?

DEPUTY DIXON: I went inside the break room to get some water and I noticed a vehicle parked right there.

DEFENSE COUNSEL: Okay, so you saw it through the window.

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Prior to that, did anybody mention that Matt Reardon's out there?

DEPUTY DIXON: Not that I know of.

DEFENSE COUNSEL: Do you know if anybody was back watching the videos in the jail administrator's office or someplace?

DEPUTY DIXON: I don't know.

DEFENSE COUNSEL: And that's the jail administrator. Did ask to preserve this video?

DEPUTY DIXON: I didn't.

DEFENSE COUNSEL: Okay. Did you ask to preserve the interior videos that would have proof of those things you talked about inside?

DEPUTY DIXON: No, I did not.

DEFENSE COUNSEL: Do you know if anybody did?

DEPUTY DIXON: No. I don't know. When it comes to videos and stuff like that at the Sheriff's Department, my rank doesn't require me to mess with any video at the Sheriff's Department.

DEFENSE COUNSEL: Understood. And during the whole incident, I really didn't think about those cameras out there up front.

DEPUTY DIXON: And you said cameras. Where is there another camera?

DEPUTY DIXON: It's two cameras that face at the front, they're facing. One's facing that way, one's facing up, okay.

DEFENSE COUNSEL: Is there a camera on this corner of the building over which would be closer to where Sheriff East parked?

DEPUTY DIXON: It is but it's been disabled for years.

DEFENSE COUNSEL: All right, who owns this lane? Is it county or sheriff's park? Do you know?

DEPUTY DIXON: County. I'd say, I mean, we're county.

DEFENSE COUNSEL: Are you aware of any ordinance or policy or procedure that designates that spot as off limits to the public?

DEPUTY DIXON: I mean, common sense would tell you that that's designated for sheriff's deputies. No one has ever found themselves in a designated handicapped area. So, I mean, everybody pretty much knows that those parking spots are for sheriff's department.

DEFENSE COUNSEL: I understand that that's what I understand your testimony. I'm trying to see is it legal for Matt to park there? Is he breaking a law when he parks in that spot? Is there an ordinance which would have the effect of law that says the public cannot park in those spots?

DEPUTY DIXON: What probably happened is we put up a couple of signs because those are the closest spots, and that way y'all can get in and out quicker, right? And y'all are the people that need to get in and out quicker. It makes sense.

DEFENSE COUNSEL: That doesn't make it illegal, though, does it?

DEPUTY DIXON: No.

DEFENSE COUNSEL: And if it's not illegal, then your command for him to move his vehicle was not a lawful command, was it?

DEPUTY DIXON: If I get someone to commit disorderly conduct, yes.

DEFENSE COUNSEL: Okay, but you can't just command somebody to do anything. You can't command me to conduct my examination five feet to the right.

DEPUTY DIXON: Correct.

DEFENSE COUNSEL: Alright, and so his car, is it impeding any traffic?

DEPUTY DIXON: If the person, if he tries to park next to them, they probably can't fit into that area because he's parked over the line.

DEFENSE COUNSEL: And my next question, is there any county ordinance that says you have to comply with parking lot parking space designations in county areas?

DEPUTY DIXON: I'm not sure about the county.

DEFENSE COUNSEL: And so is his vehicle blocking a fire hydrant?

DEPUTY DIXON: No.

DEFENSE COUNSEL: Is his vehicle there blocking any view of traffic so that somebody couldn't see a pedestrian or any kind of danger like that?

DEPUTY DIXON: No.

DEFENSE COUNSEL: Your purpose of telling him to move was because he was in a spot designated for the Sheriff's Department, right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Does the Sheriff's Department have a written policy procedure for what you are supposed to do when you initiate an arrest as far as commands you're supposed to give somebody?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: And they're supposed to be verbal commands that clearly indicate that the person is under arrest and should comply with those commands, right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Okay. If I can have a moment here. Do you have your affidavit you prepared in front of you?

DEPUTY DIXON: I do.

DEFENSE COUNSEL: Okay, I wanna look at the affidavit for the resisting arrest. The first part is "resist by violence." Just read the "resist by violence" section.

DEPUTY DIXON: "Resist by violence and running away from his lawful arrest."

DEFENSE COUNSEL: Would the running away be from when you approached him on this video and he ran to the center of the parking lot?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Is that the running away?

DEPUTY DIXON: It is .

DEFENSE COUNSEL: Okay. And then the violence, was that what occurred while you were trying to take him down?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Okay. And as I understand it, he kind of balled up.

DEPUTY DIXON: Yeah, he was doing some movement with his feet. It looked as if he was kicking from my point of view.

DEFENSE COUNSEL: Alright, you were focused on getting control of him.

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: Certainly not looking at, studying what his feet were doing the whole time, right?

DEPUTY DIXON: Yes.

DEFENSE COUNSEL: And did he have some electronics in his hand?

DEPUTY DIXON: He did. I'm not sure what he was doing with it, but I'm pretty sure he was recording. He had, I seen myself with, I want to say he had a cord on it, probably some earbuds or whatever. And once I got that out of his hand, we were...

DEFENSE COUNSEL: And when he was searched, did he have a recording device in his front pocket?

DEPUTY DIXON: He had something. I'm not sure.

DEFENSE COUNSEL: Okay. So he could have been protecting those devices as he goes down?

DEPUTY DIXON: Could have been. Not sure.

DEFENSE COUNSEL: Or turning them on or off?

DEPUTY DIXON: I'm not sure. What it looked like for me, he wasn't trying to get put in cuffs because he kept saying no. He was moving. He did say, "I was moving my vehicle, I was moving my vehicle," but if you're moving your vehicle, why would you run away?

DEFENSE COUNSEL: Gotcha. You're bigger than he is, aren't you?

DEPUTY DIXON: I am.

DEFENSE COUNSEL: He never swung at you, though, did he? He never really tried to injure you?

DEPUTY DIXON: Not at all. I don't know.

DEFENSE COUNSEL: And at the request of my client, I want to ask you this and make sure. Did you ever request interior videos?

DEPUTY DIXON: No.

DEFENSE COUNSEL: Did anyone ever ask you to say, hey, Courtney, better make sure you request, and then you just drop the ball?

DEPUTY DIXON: No. I never
